

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE SENATE

SENATE RESOLUTION NO. 124

BY JUDICIARY AND RULES COMMITTEE

A SENATE RESOLUTION

STATING FINDINGS OF THE SENATE AND PROVIDING THAT ALL TEMPORARY AND PENDING RULES OF THE IDAHO COMMISSION ON AGING, THE IDAHO COMMISSION FOR THE BLIND AND VISUALLY IMPAIRED, THE DEPARTMENT OF HEALTH AND WELFARE, AND THE DIVISION OF OCCUPATIONAL AND PROFESSIONAL LICENSES HAVE BEEN REVIEWED AND APPROVED BY THE SENATE HEALTH AND WELFARE COMMITTEE, WITH EXCEPTIONS.

Be It Resolved by the Senate of the State of Idaho:

WHEREAS, pursuant to Section 67-5291, Idaho Code, standing committees of the Legislature shall review any temporary or pending rule that is germane to its committee and has been published in the Idaho Administrative Bulletin; and

WHEREAS, the Senate Health and Welfare Committee reviewed temporary and pending rules adopted by the Idaho Commission on Aging, the Idaho Commission for the Blind and Visually Impaired, the Department of Health and Welfare, and the Division of Occupational and Professional Licenses; and

WHEREAS, the Senate Health and Welfare Committee did not review and therefore did not approve the following pending rules at the request of the Department of Health and Welfare, who expressed intent to allow the rules to expire upon sine die:

(1) IDAPA 16.06.03, Department of Health and Welfare, Rules for Daycare Licensing, Docket No. 16-0603-2501, the entire docket, at the request of the department; and

(2) IDAPA 16.06.12, Department of Health and Welfare, Rules for the Idaho Child Care Program, Docket No. 16-0612-2501, the entire docket, at the request of the department.

NOW, THEREFORE, BE IT RESOLVED by the members of the Senate, assembled in the Second Regular Session of the Sixty-eighth Idaho Legislature, that all temporary and pending rules adopted by the Idaho Commission on Aging, the Idaho Commission for the Blind and Visually Impaired, the Department of Health and Welfare, and the Division of Occupational and Professional Licenses, pursuant to the Administrative Procedure Act and submitted through the Office of the Administrative Rules Coordinator to the Legislature for review during the 2026 legislative session have been reviewed and approved by the Senate Health and Welfare Committee, with the following exceptions that were not approved:

(1) IDAPA 16.06.03, Department of Health and Welfare, Rules for Daycare Licensing, Docket No. 16-0603-2501, the entire docket, at the request of the department;

(2) IDAPA 16.06.12, Department of Health and Welfare, Rules for the Idaho Child Care Program, Docket No. 16-0612-2501, the entire docket, at the request of the department;

1 (3) IDAPA 24.05.01, Division of Occupational and Professional Li-
2 censes, Rules of the Board of Drinking Water and Wastewater Profession-
3 als, Docket No. 24-0501-2501, Section 400., only; and

4 (4) IDAPA 24.06.01, Division of Occupational and Professional Li-
5 censes, Rules for the Licensure of Occupational Therapists and Occupa-
6 tional Therapy Assistants, Docket No. 24-0601-2501, the entire docket.